

24NWCV03954 24NWCV03954

County: los-angeles

Division: Civil Law and Motion

Department: SED

Hearing date: 2026-06-24

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Case Number: 24NWCV03954 Hearing Date: June 24, 2026 Dept: SED

REYNALDO

GUTIERREZ. ET AL. V. PARTS AUTHORITY, LLC, ET AL.

CASE NO.: 24NWCV03954

HEARING: 06/24/2026 @

9:30 a.m.

#12

TENTATIVE ORDER

Defendant Parts Authority,

LLC's motion to consolidate is DENIED.

Moving party to give notice.

Defendant Parts Authority, LLC (Defendant) moves for an order consolidating the instant case with the matter entitled Danny Barba v. Parts Authority, LLC et al., Case No. 26NNCV02179.

Background

On October 23, 2024, Plaintiffs

Reynaldo Gutierrez and Ruben Ramirez (collectively, Plaintiffs) filed the operative complaint against Defendant, Alfonso Gonzalez, and Does 1 through 50, inclusive, asserting three causes of action: (1) Negligence; (2) Negligent Entrustment; and (3) Negligent Hiring, Training, Retention, and Supervision.

On May 11, 2026, Defendant filed a notice of related case seeking to relate this instant case (Gutierrez Case) Danny Barba v. Parts Authority, LLC et al., Case No. 26NNCV02179 (Barba Case).

On May 14, 2026, Defendant filed the instant motion to consolidate and continue trial.

On June 10, 2026, Plaintiff filed an opposition.

On June 17, 2026, Defendant filed a reply.

Procedural Issues

CRC Rule 3.350(a)(1)(C), states:

“[a] notice of motion to consolidate must... (C) Be filed in each case sought to be consolidated.” (Id.)

As of June 23, 2026, no Notice of Motion to Consolidate has been filed in the later-filed related action. The terms of the Rules are mandatory; compliance is not optional. This procedural requirement must be met before adjudication on the merits. The Motion to Consolidate is DENIED as Notice of Motion to Consolidate was not filed in the related action. Such a procedural requirement ensures that all parties in each related action have proper notice of this hearing.

If the moving Party refiles the Motion to Consolidate, moving party must also file the Notice of Motion to Consolidate in compliance with the Rule.